IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(*Through Hybrid Mode)*

Item No.2
CP (CAA)/1/230/AMR/2026 connected with
CA (CAA) No.4/230/AMR/2022

IN THE MATTER OF:
SHRI GIRIJA SMELTERS LIMITED
…… Petitioner-1/ Transferor Company-4/ Transferor Company-10/ Transferee Company-2

VAMSI AGROTECH PRIVATE LIMITED
…… Petitioner-2/ Transferor Company-5/ Transferor Company-11

CHINTALAPATI AGRO-TECH PRIVATE LIMITED
…… Petitioner-3/ Transferor Company-14

PERICHERLA AGRO-TECH PRIVATE LIMITED
…… Petitioner-4/ Transferor Company-16

P.V. RAMANI AGROTECH PRIVATE LIMITED
…… Petitioner-5/ Transferor Company-17/ Transferee Company-1

GIRIJA AGRO-TECH PRIVATE LIMITED
…… Petitioner-6/ Transferee Company-5

Under Section: 230 and 232 and other applicable Provisions of the Companies Act, 2013
Rule: The Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

Order delivered on 26.02.2026

CORAM:
SHRI UMESH KUMAR SHUKLA — **HON'BLE MEMBER (TECHNICAL)**
SHRI KISHORE VEMULAPALLI — **HON'BLE MEMBER (JUDICIAL)**

PRESENT:
For the Petitioners : Mr. Ganga Anil Kumar, PCS along with Ms. Lavanya

ORDER

The present joint second motion Petition bearing no. CP(CAA)/1/230/AMR/2026 (hereinafter referred to as the "CP 1/2026" or "Petition") has been filed under Sections 230 and 232 and other applicable Provisions of the Companies Act, 2013 (hereinafter referred to as the "CA, 2013") read with The Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (hereinafter referred to as the "CAA

Rules") by Shri Girija Smelters Limited (hereinafter referred to as the "Petitioner Company-1"), Vamsi Agrotech Private Limited (hereinafter referred to as the "Petitioner Company-2"), Chintalapati Agro-Tech Private Limited (hereinafter referred to as the "Petitioner Company-3"), Pericherla Agro-Tech Private Limited (hereinafter referred to as the "Petitioner Company-4"), P.V. Ramani Agrotech Private Limited (hereinafter referred to as the "Petitioner Company-5") and Girija Agro-Tech Private Limited (hereinafter referred to as the "Petitioner Company-6") (hereinafter Petitioner Company-1 to 6 collectively referred to as the "Petitioner Companies") for sanction of the Comprehensive Scheme of Arrangement amongst Petitioner Companies and Non-Petitioner Companies namely CSR Developers Private Limited, West Bengal (hereinafter referred to as the "Non-Petitioner Company-1"); Sri Gayatri Minerals Private Limited, West Bengal (hereinafter referred to as the "Non-Petitioner Company-2"); Brahmani Ferro Alloys Private Limited, Odisha (hereinafter referred to as the "Non-Petitioner Company-3"); Biraja Ferro Alloys Private Limited, Odisha (hereinafter referred to as the "Non-Petitioner Company-4"); C.Radha Agro-Tech Private Limited, West Bengal (hereinafter referred to as the "Non-Petitioner Company-5"); Birija Agro-Tech Private Limited, Odisha (hereinafter referred to as the "Non-Petitioner Company-6") and Brahmani Agro-Tech Private Limited, Odisha (hereinafter referred to as the "Non-Petitioner Company-7") and their respective Shareholders and Creditors with effect from the Appointed Date i.e. 01.04.2020. A copy of the Scheme has been annexed with the Petition as Annexure-A-13.

2. The Petitioner Companies have *interalia* also prayed to send the notice of the Petition to the Registrar of Companies, Andhra Pradesh, the Income Tax Authorities and the Official Liquidator and direct the publication of advertisement in the newspapers namely 'Business Standard' (English Daily) and 'Andhra Prabha' (Telugu Daily) of hearing of the Petition.

FACTS OF THE CASE:

3. The joint First Motion Company Application bearing No. CA(CAA)4/230/AMR/2022 (hereinafter referred to as the "CA 4/2022" or "Application") was e-filed on 06.08.2021 and physically filed vide Diary No.0780 dated 12.08.2021, by the Petitioner Companies inter alia seeking direction for dispensation of the meetings of the Equity Shareholders of the Petitioner Companies based on the

consent of all the Equity Shareholders as per the list as on 28.12.2020, and of Secured Creditors of the Petitioner Companies, as there were no Secured Creditors as per the list as on 28.12.2020 and convene the meetings of Unsecured Creditors of all the Petitioner Companies as per the list as on 28.12.2020. This Tribunal vide its order dated 06.05.2022 directed to dispense with the meetings of the Equity Shareholders & Secured Creditors of the Petitioner Companies for the reasons recorded therein and directed to convene the separate meetings of the Unsecured Creditors of the Petitioner Companies on 20.06.2022, and for conduct of the meetings, appointed Ms. Harshita Datla, Advocate and Mr. P. Srikanth, PCS as Chairperson and Scrutinizer respectively for Petitioner Company-1 and Ms. Kruthi Kalaga, Advocate and Ms. Vangala Priyanka as Chairperson and Scrutinizer respectively for Petitioner Companies-2 to 6. This Tribunal vide above Order also directed the Petitioner Companies to send notice to the Central Government, Registrar of Companies, Andhra Pradesh, Income Tax Authorities and Official Liquidator to make representation, if any under Section 230(5) to this Tribunal within 30 days from the date of receipt of the notice and directed to the Chairpersons of the meetings to:

(i) issue an advertisement in 'Business Standard' (in English) and 'Andhra Prabha' (in Telugu) at least one month before the meetings indicating the day, date, place and time of the meetings & file Compliance Affidavit not less than seven days before the date of the meeting to this Tribunal and

(ii) report the result of the meetings in Form CAA-4 duly verified by Affidavit within seven working days of the meetings.

4. As per the records available, the Chairpersons of the Petitioner Companies have not filed their reports on the DMS, however, it is noted that the Chairperson of the Petitioner Company-1 vide Diary No.145 dated 04.07.2022 in CA 4/2022, filed the report dated 25.06.2022 and the Chairperson of the Petitioner Companies-2 to 6 vide Diary No.147 dated 04.07.2022 in CA 4/2022 filed the separate reports of the Petitioner Companies-2 to 6 dated 23.06.2022 on the result of meetings of Unsecured Creditors stating that in the meetings held on 20.06.2022, the resolution was passed in favour of the proposed Scheme in the respective meetings of the Unsecured Creditors of the Petitioner Companies.

5. It is stated by the Petitioner Companies that they have filed the Second Motion Petition bearing Filing No. 2812129000722023 dated 01.02.2023 and as per the Registrar directions, uploaded the additional information on 27.02.2024. Again as per the Registrar directions, the Petitioner Companies re-uploaded all files volume wise and deleted Annexure wise files on 23.09.2025. Upon scrutiny, the Registry pointed out certain defects and granted time to rectify the same in accordance with Rule 28(2) of the National Company Law Tribunal Rules, 2016 (hereinafter referred to as the "**NCLT Rules**"). Subsequently, the Registrar issued Notice No. 329/2025 dated 23.09.2025 under Rule 28(3) of the NCLT Rules, directing the Petitioner Companies to cure the defects and refile the Petition within seven days. The Petitioner Companies accordingly refiled the Petition on 23.09.2025 after curing all the defects communicated earlier, along with a request for condonation of delay. Thereafter, on 09.12.2025, the Registrar passed an order under Rule 28(4) of the NCLT Rules, declining to register the Petition, citing the remaining/new defect. The extract of the Registrar Order dated 09.12.2025 is reproduced below:

Filing No. : 2812129000722023
Case type: CP(AA) Merger and Amalgamation(Companies Act)
Section: Sec. 230-232 - Second Motion
Case title: SHRI GIRIJA SMELTERS LIMITED & Others VS

REGISTRAR ORDER UNDER RULE 28(4)

In terms of the , the defects qua your Petition/Application/Document were notified/brought to your notice and you were given time to remove the defects within time specified. As you failed to refile the Petition/Application/Document free from all defects, within time specified, the matter was referred to the undersigned and notice No. 329/2025 dated 23-09-2025 was issued to you giving you an opportunity to remove the defects within 7 days, in terms of Rule 28 (3) of NCLT Rules, 2016.

It is found that you have failed to cure the following defects/new defects found qua Petition/ Application/ Documents.

Serial No.	Defects
1	facts are not clear.

Thus, in terms of Rule 28 (4) of the NCLT Rules, 2016, on your failure to cure the defects pointed in the notice dated 15/01/2024/new defects found, I decline to register your Petition/Application/Document.

If you are aggrieved you may file an Appeal within 15 days as per the Rule 63 of NCLT Rules, 2016, before the designated Appellate Authority of National Company Law Tribunal.

Registrar

6. Aggrieved by the above Order of the Registrar, the Petitioner Companies e-filed on 24.12.2025 and physically filed vide Diary No. 46 dated 08.01.2026, an Appeal bearing no. Rule 63 Appeal/10/2025 before the Member (Judicial) (i.e. the member of this Bench designated by the Hon'ble President of NCLT for hearing the Appeal under Rule 63 of the NCLT Rules) with the prayer to set aside the Registrar's Order dated 09.12.2025 passed under Rule 28(4) of the NCLT Rules and direct the Registry to register the Second Motion Petition (Filing No. 2812129000722023) forthwith and place it before the Bench for hearing. The grounds of Appeal are as below:

(i) *"Facts not clear" is not a valid defect*: This objection pertains to merits, not procedure, and falls outside the Registrar's jurisdiction, as the Rule 28 of NCLT Rules empowers the Registrar only to examine completeness of documents, compliance with procedural requirements, rectification of curable defects.

(ii) *All procedural defects were already cured*: The Petitioner Companies duly refiled the Petition with index, event dates, synopsis, corrected pages & volumes, complete annexures, supporting affidavits, resolutions, valuation reports, Chairman reports of meetings, auditor certificates, financials and Scheme papers etc., and therefore no procedural defect remained.

(iii) *Registrar cannot decline filing based on subjective merits*: Only the Bench has jurisdiction to consider the clarity or adequacy of facts and the Registrar's act amounts to adjudication, which is impermissible.

(iv) *No new defect was specifically communicated* : The impugned notice does not specify, which paragraphs were unclear, which facts required elaboration, nor any statutory rule violated which violates principles of natural justice.

(v) *Appeal is maintainable under Rule 63* : Rule 63 explicitly provides an appeal mechanism against any order of the Registrar.

7. After considering the submissions of the Petitioner Companies, the Hon'ble Member (Judicial) vide Order dated 30.01.2026 granted two weeks' time for filing the amended Second Motion Petition, and directed the Registry to number the Petition for placing the same in the regular course. The extract of the aforesaid order is reproduced below:

ORDER

This Application has been filed by the Appellant under Rule 63 of the National Company Law Tribunal Rules, 2016, seeking to set aside the Order dated 09.12.2025 passed by the Learned Registrar, NCLT, Amaravati Bench, and to direct the Registry to register the Second Motion Petition (Filing No.2812129000000722023) forthwith.

The Counsel for the Appellant submitted that, after the Second Motion Petition was returned by the Registry, a compliance memo was filed explaining the merged, consolidated, and comprehensive Scheme of Arrangement, involving merger, demerger, and amalgamation of the companies, for the clarity of this Bench while passing orders in 2nd Motion Petition. The Counsel further sought two weeks' time to file an amended copy of the Second Motion Petition, incorporating the result of the comprehensive scheme explained in the said compliance memo and also including the index and synopsis to the main petition.

Considering the submissions made by counsel for the Appellant, two weeks' time is granted for filing the amended Second Motion Petition, as stated above. Upon compliance and filing of the amended petition, the Registry is directed to number the Company Petition and place the matter in regular course. **Accordingly, Rule 63 Appeal No. 10 of 2025 is disposed of.**

8. Pursuant to the above order, the Petitioner Companies e-filed the amended Second Motion Petition on 12.02.2026 and physically filed vide Diary No.268 dated 12.02.2026.

ANALYSIS AND FINDINGS

9. We have heard the PCS representing the Petitioner Companies and perused the records carefully.

10. The solo question for consideration before us is **"Whether the Petition has been filed by the Petitioner Companies within the prescribed time".**

(i) Rule 14 and 15 of the CAA Rules prescribes the timeline for filing the Second Motion Petition as below:

"14 Report of the result of the meeting by chairperson :-

The chairperson of the meeting (or where there are separate meetings , the chairperson of each meeting) shall, within the time fixed by the tribunal, or where no time has been fixed, within three days after the conclusion of

the meeting submit a report to the Tribunal on the result of the meeting in Form No. CAA.4.

15 Petition for confirming compromise or arrangement :-

(1) Where the proposed compromise or arrangement is agreed to by the members or creditors or both as the case may be with or without modification, the company (or its liquidator), shall, within seven days of the filing of the report by the chairperson, present a petition to the tribunal in Form No. CAA.5 for sanction of the scheme of compromise or arrangement.

(2) Where a compromise or arrangement is proposed for the purposes of or in connection with scheme for the reconstruction of any company proposed for the purposes of or in connection with scheme for the reconstruction of any company or companies or for the amalgamation of any two or more companies, the petition shall pray for appropriate orders and directions under section 230 read with section 232 of the Act.

(3) Where the company fails to present the petition for confirmation of the compromise or arrangement as aforesaid, it shall be open to any creditor or member as the case may be , with the leave of the tribunal, to present the petition and the company shall be liable for the cost thereof."

(ii) This Tribunal vide its order dated 06.05.2022 has directed to convene the meetings of the Unsecured Creditors of the Petitioner Companies on 20.06.2022 and the Chairpersons of the respective meetings were directed to report the result of the meeting within seven working days. Therefore, in terms of the Rule 14 of the CAA Rules, the Chairpersons of the meetings of the Unsecured Creditor of the Petitioner Companies were required to file their reports latest to this Tribunal by 29.06.2022, however, the same were filed on 04.07.2022.

(iii) Further, in terms of Rule 15 read with Rule 14 of the CAA Rules, the Second Motion Petition was required to be filed by 06.07.2022 (within ten days after the due date of filing the report by the Chairpersons of the meetings), however, it is observed from the public portal of NCLT website that the e-filing number for filing the Second Motion Petition was generated on 01.02.2023, however, no corresponding documents are available on

record either in physical or in DMS on that date. The screenshot of the public portal of NCLT website are reproduced below:

Case Details

X

Filing No.	Party Name	Registration No.
2812129000722023 All Hearings 2812129000722023	SHRI GIRIJA SMELTERS LIMITED & Others VS	C.P.(CAA)/1/AM/2026 Effective Hearings C.P.(CAA)/1/AM/2026

Current Details

Filing Date	Case Type	Case Filed By	Defect Issued	Refiled	Defect Free	Registration Date	Court No	Bench Nature	First Listing Date	Case Stage
01-02-2023	CP(AA) Merger and Amalgamation(Companies Act)	A V V S S CH B SEKHAR BABU(P)	28-10-2025	12-02-2026	YES 16-02-2026	16-02-2026	1	Division Bench		Case In Final Causelist For: 26-02-2026

(iv) The Petitioner Companies stated to have filed the Second Motion Petition vide Diary No.2093 dated 18.04.2023, however as per the DMS portal, the same has been e-filed on 27.02.2024, which was shown as defected document and after curing the defects, the Amended Petition has been refiled on 12.02.2026. The screenshot of the DMS portal is reproduced below:

NATIONAL COMPANY LAW TRIBUNAL
राष्ट्रीय कंपनी विधि अधिकरण

LIST OF DOCUMENTS UNDER FILING NO: 2812129000722023

earch:

S.NO.	DOCUMENT TYPE(S)	DOCUMENT OWNER(S)	DOCUMENT(S)	DATE(S) OF FILING	DOCUMENT STATUS	MISCELLANEOUS NUMBER	VIEW DOCUMENT	DOWNLOAD
1.	Vakaltnama	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Memorandum-of-Appearance.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
2.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-1A---AMENDED-SECOND-MOTION-PETITION.pdf	12-02-2026	Defected Doc	2812129000722023	VIEW	DOWNLOAD
3.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-1A---MEMO-OF-COMPLIANCE-&-AMENDED-SECOND-MOTION-PETITION.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
4.	Vakaltnama	SHRI GIRIJA SMELTERS LIMITED & Others : P1	PCS-MOA-Anil.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
5.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-5-802-1001.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
6.	Vakaltnama	SHRI GIRIJA SMELTERS LIMITED & Others : P1	PCS-MOA-Sekhar.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
7.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-1-1-200.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
8.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-2-201-400.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
9.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-4-602-801.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
10.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-3-401-601.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
11.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-6-1001-1200.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD

12.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-7-1201-1399-Part-A.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
13.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	V-7-1400-1406-Part-B.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
14.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Previous-Online-filing-ACK.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
15.	Copy-Of-Order	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Memo--Delay-Condonation-and-Additional-Docs.pdf	12-02-2026	Defect Free	2812129000722023	VIEW	DOWNLOAD
16.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Index-of-CP.pdf	23-09-2025	Defected Doc	2812129000722023	VIEW	DOWNLOAD
17.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-8_2022.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
18.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Petition-181-301.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
19.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-2_2022.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
20.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-4_2020.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
21.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-14.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
22.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-13-182-372.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
23.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-16.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
24.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-2_2020.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
25.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-11.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
26.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	1-Annexure---Vamsi-and-Chintalapati---Unsecured-Creditors-Chairmen-Report.pdf	27-02-2024	Defected Doc	2812129000722023	VIEW	DOWNLOAD
27.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-13-1-181.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
28.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-15.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
29.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-2_September.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
30.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-5.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
31.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-6_2022.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
32.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-10_2020.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
33.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Shri-Girija-Alloy-Memo---Objections-with-4-Annexures.pdf	27-02-2024	Defected Doc	2812129000722023	VIEW	DOWNLOAD
34.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-12_2022.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
35.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	4-Annexure---CSR-Developers-Scheme---Synopsis.pdf	27-02-2024	Defected Doc	2812129000722023	VIEW	DOWNLOAD
36.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-12_2020.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
37.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-27.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
38.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-17.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
39.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	2-Annexure----Accounting-Treatment-Certificate-issued-by-Auditor.pdf	27-02-2024	Defected Doc	2812129000722023	VIEW	DOWNLOAD
40.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-26.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
41.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-22.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
42.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-19.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
43.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-6_September.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
44.	Any-Other-Document	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Company-Application-II---Amaravathi-Bench---Index.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
45.	Vakaltnama	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Form-NCLT---12---Memorandum-of-Appearance.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
46.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-12_September.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
47.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-9.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
48.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-21.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD

49.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	1-Annexure---Vamsi-and-Chintalapati---Unsecured-Creditors-Chairmen-Report.pdf	27-02-2024	Defected Doc	2812129000722023	VIEW	DOWNLOAD
50.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-7.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
51.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-6_2020.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
52.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-23.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
53.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-13-373-407.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
54.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Shri-Girija-Alloy-Memo.pdf	27-02-2024	Defected Doc	2812129000722023	VIEW	DOWNLOAD
55.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-10_2022.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
56.	Affidavits	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Affidavit.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
57.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-1.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
58.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-18.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
59.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-20.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
60.	Any-Other-Document	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Notice-of-Admission.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
61.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-25.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
62.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-8_2020.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
63.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	3-Annexure---Valuation-Reports-new.pdf	27-02-2024	Defected Doc	2812129000722023	VIEW	DOWNLOAD
64.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-4_2022.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
65.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-3.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
66.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-8_September.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
67.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-10_September.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
68.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-24.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
69.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-28.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
70.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	2-Annexure----Accounting-Treatment-Certificate-issued-by-Auditor.pdf	27-02-2024	Defected Doc	2812129000722023	VIEW	DOWNLOAD
71.	Petition	SHRI GIRIJA SMELTERS LIMITED & Others : P1	Petition-1-180.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD
72.	Annexure	SHRI GIRIJA SMELTERS LIMITED & Others : P1	A-4_September.pdf	27-02-2024	Defected Doc	NA	VIEW	DOWNLOAD

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(v) From the above sequence of events, it is evident that the Second Motion Petition has been filed after an inordinate delay, far beyond the statutory period contemplated under Rule 15 of the CAA Rules. Such delay defeats the procedural framework envisaged under Sections 230-232 of the CA, 2013, which requires strict adherence to the prescribed timelines for seeking sanction of a scheme of compromise or arrangement. In view of the inordinate delay and non-compliance with mandatory procedural requirements, we are of the considered view that the resolution passed in the meetings of the Unsecured Creditors of the Petitioner Companies on 20.06.2022, which was conducted based on the list of Unsecured Creditors as on 28.12.2020, cannot be treated as valid in the year 2026 after a gap of more than 5 years. Similarly, the consent affidavits given by the Equity Shareholders of

the Petitioner Companies, based on the list of Equity Shareholders as on 28.12.2020, cannot be treated as valid for the same reason. Further, the list of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Petitioner Companies as on 28.12.2020 also loses the relevance in view of change in their composition and value during the period of more than five years.

(vi) In this context, we also rely on the judgment delivered on 24.02.2026 by the Hon'ble Supreme Court in the matter of ***Omkara Assets Reconstruction Private Limited vs. Amit Chaturvedi & Ors.,*** **in Civil Appeal No.11417 of 2025**, wherein it has been observed that the Second Motion Petition cannot be filed with inordinate delay. The relevant extracts of the said judgment is reproduced below:

> "20. …….. We say this without prejudice to our prima facie finding that the application for second motion was grossly delayed, beyond the time prescribed for filing such an application and hence incompetent. ….."

11. The Petitioner Companies vide Diary No.1951 dated 26.09.2025 filed the Memo for furnishing additional information requesting to take on record the revised documents uploaded afresh on NCLT e-Portal; treat the additional documents filed vide the Memo as part of the record; and condone the delay in uploading being only on account of technical requirement. In view of our observations in the preceding para, we are not inclined to consider the request for condonation of the delay.

12. Accordingly, **CP (CAA)/1/230/AMR/2026 connected with CA (CAA) No. 4/230/ AMR/2022 stands dismissed and disposed of.**

Sd/-	**Sd/-**
(UMESH KUMAR SHUKLA)	**(KISHORE VEMULAPALLI)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**